

CHAPTER 61.

An Act to regulate the publication of reports of
 judicial proceedings in such manner as to
 prevent injury to public morals.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty,
 by and with the advice and consent of the Lords
 Spiritual and Temporal, and Commons, in this present
 Parliament assembled, and by the authority of the same,
 as follows:—

Restriction
 on publica-
 tion of
 reports of
 judicial
 proceedings.

1.—(1) It shall not be lawful to print or publish, or
 cause or procure to be printed or published—

(a) in relation to any judicial proceedings any
 indecent matter or indecent medical, surgical or
 physiological details being matter or details the
 publication of which would be calculated to
 injure public morals;

(b) in relation to any judicial proceedings for dissolu-
 tion of marriage, for nullity of marriage, or for
 judicial separation, or for restitution of conjugal
 rights, any particulars other than the following,
 that is to say:—

(i) the names, addresses and occupations of
 the parties and witnesses;

(ii) a concise statement of the charges,
 defences and countercharges in support of
 which evidence has been given;

(iii) submissions on any point of law arising
 in the course of the proceedings, and the
 decision of the court thereon;

(iv) the summing-up of the judge and the
 finding of the jury (if any) and the judgment
 of the court and observations made by the
 judge in giving judgment:

Provided that nothing in this part of this subsection
 shall be held to permit the publication of anything

contrary to the provisions of paragraph (a) of this subsection.

(2) If any person acts in contravention of the provisions of this Act, he shall in respect of each offence be liable, on summary conviction, to imprisonment for a term not exceeding four months, or to a fine not exceeding five hundred pounds, or to both such imprisonment and fine :

Provided that no person, other than a proprietor, editor, master printer or publisher, shall be liable to be convicted under this Act.

(3) No prosecution for an offence under this Act shall be commenced in England and Wales by any person without the sanction of the Attorney-General.

(4) Nothing in this section shall apply to the printing of any pleading, transcript of evidence or other document for use in connection with any judicial proceedings or the communication thereof to persons concerned in the proceedings, or to the printing or publishing of any notice or report in pursuance of the directions of the court; or to the printing or publishing of any matter in any separate volume or part of any *bonâ fide* series of law reports which does not form part of any other publication and consists solely of reports of proceedings in courts of law, or in any publication of a technical character *bonâ fide* intended for circulation among members of the legal or medical professions.

(5) In the application of this section to Scotland, for any reference to judicial proceedings for restitution of conjugal rights there shall be substituted a reference to an action of adherence or of adherence and aliment.

2.—(1) This Act may be cited as the *Judicial Proceedings (Regulation of Reports) Act, 1926.* Short title
and extent.

(2) This Act does not extend to Northern Ireland.
